

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 878

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO WILDLAND FIREFIGHTERS; AMENDING SECTION 59-1603, IDAHO CODE,
TO PROVIDE AN EXCEPTION TO THE WILDLAND FIREFIGHTER DIFFERENTIAL PAY;
AMENDING SECTION 67-5309D, IDAHO CODE, TO PROVIDE AN EXCEPTION TO THE
WILDLAND FIREFIGHTER DIFFERENTIAL PAY; AND DECLARING AN EMERGENCY AND
PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 59-1603, Idaho Code, be, and the same is hereby
amended to read as follows:

59-1603. CONFORMITY WITH CLASSIFIED POSITIONS. (1) To the extent possible, each nonclassified position in the executive department will be paid a salary or wage comparable to classified positions with similar duties, responsibilities, training, experience and other qualifications in consultation with the division of human resources. Temporary employees and agricultural inspectors referred to in subsections (m) and (o) of section 67-5303, Idaho Code, shall not be entitled to sick leave accruals provided in section 59-1605, Idaho Code, vacation leave provided in section 59-1606, Idaho Code, or holiday pay defined in subsection (15) of section 67-5302, Idaho Code, unless contributions are being made to the public employee retirement system in accordance with chapter 13, title 59, Idaho Code, and rules promulgated by the retirement board. Vacation and sick leave accruals, but not holiday pay, shall be awarded retroactively, if necessary, to the date such employees become eligible for retirement system membership.

(2) To the extent possible, nonclassified state employees in the executive department reporting to the governor or a board or commission appointed by the governor shall conform with chapter 53, title 67, Idaho Code, defining the state personnel system, in sections where nonclassified state employee personnel standards are expressly defined.

(3) To the extent possible, each nonclassified position in the legislative department will be paid a salary or wage comparable to classified positions with similar duties, responsibilities, training, experience and other qualifications.

(4) The supreme court shall determine the schedules of salary and compensation for all officers and employees of the judicial department that are not otherwise fixed by law. To the extent possible, the supreme court shall adopt schedules compatible with the state's accounting system. The judicial department may also maintain personnel records and files under such system as is ordered by the supreme court.

(5) The state board of education shall determine the schedules of salary and compensation, and prescribe policies for overtime and compensatory time off from duty, for all officers, teaching staff, and employees of the state board of education as provided by law. To the extent possible,

1 the state board of education shall adopt schedules and policies compatible
2 with the state's accounting system. The state board of education may also
3 maintain personnel records and files under a system of its own, if approved
4 by the state controller.

5 (6) Members of the legislature, the lieutenant governor, other offi-
6 cers whose salaries are fixed by law, and members of part-time boards, com-
7 missions and committees shall be paid according to law.

8 (7) Any schedule of salary and compensation must be approved by the ap-
9 pointing authority and be communicated to the state controller in writing at
10 least thirty (30) days in advance of the effective date of the schedule.

11 (8) In addition to salary increases provided by any compensation sched-
12 ule adopted pursuant to subsection (7) of this section, nonclassified offi-
13 cers and employees, except those who are elected officials or whose salaries
14 are fixed by law, may be granted an award not to exceed two thousand dollars
15 (\$2,000) in any given fiscal year based on an affirmative certification of
16 meritorious service. Exceptions to the two-thousand-dollar (\$2,000) limit
17 provided in this section may be granted under extraordinary circumstances if
18 approved in advance by the state board of examiners. Appointing authorities
19 shall submit a report to the division of financial management and the leg-
20 islative services office by October 1 on all awards granted in the preceding
21 fiscal year.

22 (9) In addition to salary increases provided by any compensation sched-
23 ule, nonclassified officers and employees, except those who are elected of-
24 ficials or whose salaries are fixed by law, may be granted an award not to
25 exceed two thousand dollars (\$2,000) in any given fiscal year based on sug-
26 gestions or recommendations made by the employee that resulted in taxpayer
27 savings as a result of cost savings or greater efficiencies to the depart-
28 ment, office or institution or to the state of Idaho in excess of the amount
29 of the award. Exceptions to the two-thousand-dollar (\$2,000) limit provided
30 in this subsection may be granted in extraordinary circumstances if approved
31 in advance by the state board of examiners. The appointing authority shall
32 as near as practicable utilize the criteria in conformance with rules pro-
33 mulgated by the division of human resources pursuant to section 67-5309D,
34 Idaho Code. Appointing authorities shall submit a report to the division of
35 financial management and the legislative services office by October 1 on all
36 employee suggestion awards granted in the preceding fiscal year. Such re-
37 port shall include any changes made as a direct result of an employee's sug-
38 gestion and savings resulting therefrom.

39 (10) Each appointing authority, including the elective offices in the
40 executive department, the legislative department, the judicial department,
41 and the state board of education and the board of regents, shall comply with
42 all reporting requirements necessary to produce the list of employee posi-
43 tions prescribed by section 67-3519, Idaho Code.

44 (11) The adjutant general, with the approval of the governor, shall
45 prescribe personnel policies for all officers and employees of the national
46 guard that are not otherwise fixed by law. Such policies will include an
47 employee grievance procedure with appeal to the adjutant general. The ad-
48 jutant general shall determine schedules of salary and compensation that
49 are, to the extent possible, comparable to the schedules used for federal
50 civil service employees of the national guard and those employees serving

1 in military status. Schedules adopted shall be compatible with the state's
2 accounting system to the extent possible.

3 (12) In addition to salary increases provided by any compensation
4 schedule, nonclassified officers and employees, except those who are
5 elected officials or whose salaries are fixed by law, may be granted award
6 pay for recruitment or retention purposes. Retention bonuses require af-
7 firmative certification of meritorious service after completion of at least
8 six (6) months of service prior to issuance. Department directors and the
9 administrator of the division of human resources are authorized to seek
10 legal remedies available, including deductions from an employee's accrued
11 vacation funds, from an employee who resigns during the designated period of
12 time after receipt of a recruitment or retention bonus. Appointing author-
13 ities shall submit a report to the division of financial management and the
14 legislative services office by October 1 on all such awards granted in the
15 preceding fiscal year.

16 (13) In addition to salary increases provided by any compensation
17 schedule, nonclassified officers and employees, except those who are
18 elected officials or whose salaries are fixed by law, may be granted other
19 pay as provided in this subsection. Appointing authorities shall submit a
20 report to the division of financial management and the legislative services
21 office by October 1 on all such awards granted in the preceding fiscal year,
22 including:

23 (a) Shift differential pay up to twenty-five percent (25%) of hourly
24 rates depending on local market rates in order to attract and retain
25 qualified staff;

26 (b) Geographic differential pay in areas of the state where recruitment
27 and retention are difficult due to economic conditions and cost of liv-
28 ing; and

29 (c) Wildland firefighter differential pay up to twenty-five percent
30 (25%) of hourly rates for wildland firefighting personnel who hold
31 current incident qualification cards while working on the fireline of
32 a fire incident not deemed controlled or at a fire incident helibase
33 servicing active flights. Such differential pay shall apply only to
34 temporary returning seasonal firefighters and temporary first year
35 seasonal firefighters. Such differential pay shall not apply to per-
36 manent employees who have a firefighting role or hold current incident
37 qualification cards.

38 (14) When necessary to obtain or retain qualified personnel and when a
39 distribution has been approved for classified employees pursuant to section
40 67-5309D, Idaho Code, each appointing authority, including the elective of-
41 fices in the executive branch, the legislative branch, the judicial branch,
42 and the state board of education and the board of regents of the university of
43 Idaho, may grant nonclassified employees nonmerit pay in the same proportion
44 as received by classified employees in that department or institution. Ap-
45 pointing authorities shall submit a report to the division of financial man-
46 agement and the legislative services office by October 1 on all such awards
47 granted in the preceding fiscal year.

48 (15) Each appointing authority shall, as nearly as practicable, utilize
49 the criteria for reimbursement of moving expenses in conformance with sec-
50 tion 67-5337, Idaho Code, and rules promulgated by the division of human re-

1 sources pursuant thereto. Appointing authorities shall submit a report to
2 the division of financial management and the legislative services office by
3 October 1 on all moving reimbursements granted in the preceding fiscal year.

4 (16) Specific pay codes shall be established and maintained in the state
5 controller's office to ensure accurate reporting and monitoring of all pay
6 actions authorized in this section.

7 SECTION 2. That Section 67-5309D, Idaho Code, be, and the same is hereby
8 amended to read as follows:

9 67-5309D. OTHER PAY DELIVERY OPTIONS. (1) In addition to pay increases
10 authorized in section 67-5309B, Idaho Code, the department director may
11 grant a classified employee bonus pay not to exceed two thousand dollars
12 (\$2,000) in any given fiscal year based on exemplary performance. Excep-
13 tions to the two-thousand-dollar (\$2,000) limit provided in this subsection
14 may be granted in extraordinary circumstances if approved in advance by the
15 state board of examiners. Departments shall submit a report to the division
16 of financial management and the legislative services office by October 1 on
17 all bonuses granted in the preceding fiscal year.

18 (2) In addition to pay increases authorized in section 67-5309B, Idaho
19 Code, the department director may grant a classified employee an award pay-
20 ment based on suggestions or recommendations made by the employee that re-
21 sulted in taxpayer savings as a result of cost savings or greater efficien-
22 cies to the department or to the state of Idaho in excess of the amount of the
23 award and in compliance with the rules for employee suggestion awards pro-
24 mulgated by the division of human resources. The award may be an amount up to
25 twenty-five percent (25%) of the amount determined to be the dollar savings
26 to the state, but not in excess of two thousand dollars (\$2,000). Exceptions
27 to the two-thousand-dollar (\$2,000) limit provided in this subsection may be
28 granted in extraordinary circumstances if approved in advance by the state
29 board of examiners. Departments shall submit a report to the division of fi-
30 nancial management and the legislative services office by October 1 on all
31 employee suggestion awards granted in the preceding fiscal year. Such re-
32 port shall include any changes made as a direct result of an employee's sug-
33 gestion and savings resulting therefrom.

34 (3) In addition to pay increases authorized in section 67-5309B, Idaho
35 Code, the department director may grant award pay to a classified employee
36 for recruitment or retention purposes. Retention bonuses require comple-
37 tion of at least six (6) months of achieving performance standards prior to
38 issuance. The department director and the administrator of the division of
39 human resources are authorized to seek legal remedies available, including
40 deductions from an employee's accrued vacation funds, from an employee who
41 resigns during the designated period of time after receipt of a recruitment
42 or retention bonus. Departments shall submit a report to the division of fi-
43 nancial management and the legislative services office by October 1 on all
44 such awards granted in the preceding fiscal year.

45 (4) In addition to pay increases authorized in section 67-5309B, Idaho
46 Code, department directors may provide a classified employee other nonper-
47 formance-related pay as provided in this subsection. Departments shall sub-
48 mit a report to the division of financial management and the legislative ser-

1 vices office by October 1 on all such awards granted in the preceding fiscal
2 year, including:

3 (a) Shift differential pay up to twenty-five percent (25%) of hourly
4 rates depending on local market rates in order to attract and retain
5 qualified staff;

6 (b) Geographic differential pay in areas of the state where recruitment
7 and retention of qualified staff are difficult due to economic condi-
8 tions and cost of living; and

9 (c) Wildland firefighter differential pay up to twenty-five percent
10 (25%) of hourly rates for wildland firefighting personnel who hold
11 current incident qualification cards while working on the fireline of
12 a fire incident not deemed controlled or at a fire incident helibase
13 servicing active flights. Such differential pay shall apply only to
14 temporary returning seasonal firefighters and temporary first year
15 seasonal firefighters. Such differential pay shall not apply to per-
16 manent employees who have a firefighting role or hold current incident
17 qualification cards.

18 Employees in the same classification who are similarly situated shall be
19 treated consistently in respect to shift differential and geographic pay
20 differential.

21 (5) When necessary to obtain or retain qualified personnel in a partic-
22 ular classification, upon petition of the department to the administrator
23 containing acceptable reasons therefor, a higher temporary pay grade may be
24 authorized by the administrator that, if granted, shall be reviewed annually
25 to determine the need for continuance.

26 (6) In unusual circumstances, with prior approval from the administra-
27 tors of the division of human resources and the division of financial manage-
28 ment, agencies may grant nonperformance-related pay to employees, which in
29 no case may exceed five percent (5%) of an employee's base pay. Departments
30 shall submit a report to the division of financial management and the leg-
31 islative services office by October 1 on all such awards granted in the pre-
32 ceding fiscal year.

33 (7) Specific pay codes shall be established and maintained in the state
34 controller's office to ensure accurate reporting and monitoring of all pay
35 actions authorized in this section.

36 SECTION 3. An emergency existing therefor, which emergency is hereby
37 declared to exist, this act shall be in full force and effect on and after
38 July 1, 2026.